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Order Denying District Stay

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 45 — Filed April 1, 2026

Cinder Lake's emergency motion for a district-court stay pending a proposed mandamus petition is DENIED. The Court applies the familiar stay considerations to the limited record presented and concludes Cinder Lake has not shown that a district stay is warranted.

The production deadline remains 5:00 p.m. Eastern time on April 1, 2026. This order does not restrict Cinder Lake from seeking relief in the court of appeals.

Likelihood and Irreparable Injury

The Court recognizes that disclosure of material claimed privileged creates an injury that later exclusion may not fully remedy. That consideration favors preservation. The Court nevertheless concludes Cinder Lake has not shown a sufficient likelihood that the categorical-waiver ruling is clearly erroneous.

The August 21 letter intentionally linked outside counsel's review, the organization's conclusion, and remediation. For the reasons already stated, the Court treats that linkage as disclosure of the essential assessment.

Equities and Public Interest

Calder has prepared discovery based on the March 25 order and has an interest in timely access to the adjudicated files. The protective order limits use and dissemination. All other discovery remains available, but delaying this category would affect planned depositions.

The public interest supports privilege and lawful discovery. On balance, the Court declines to stay its order while recognizing that an appellate court may assess extraordinary relief under a different standard.

Conclusion

The district stay motion is DENIED. Cinder Lake must comply by the existing deadline unless the court of appeals or another lawful order preserves the status quo. The provisionally lodged complete exhibits remain restricted from public access.

SO ORDERED at 8:15 a.m. on April 1, 2026 by Evelyn Harrow, Fictional United States District Judge.